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The Agency for the Protection of Personal Data, as an independent supervisory body responsible for monitoring the application of the General Data Protection Regulation, issues recommendations for the upcoming elections for representatives in the Croatian Parliament regarding the processing of personal data that political parties, independent lists, candidates, and other participants must adhere to during the candidacy process and electoral promotion, in order to ensure that the processing of personal data of all election participants, especially voters, is in accordance with the legislative framework for the protection of personal data.

For the purposes of advertising and sending personalized messages to voters, political parties/independent lists can generally rely on the consent of the voters or on legitimate interest. For example, if a voter is a supporter or member of a particular political party and/or a donor to it, they can expect to receive a personalized message from that party, meaning the political party has a legitimate interest in sending such messages. However, invoking legitimate interest cannot be done arbitrarily; the data controller (political party) must demonstrate it by conducting a proportionality test before processing personal data, in which it will thoroughly assess whether the rights to process personal data by the data controller outweigh the rights to the protection of personal data of the voter.

It is important to emphasize that, in addition to other rights under the General Data Protection Regulation, the voter has the right to object to such processing of their personal data at any time, meaning they can object to receiving messages, regardless of whether they have given consent or whether the political party has a legitimate interest in processing their personal data. This right of the voter must be communicated clearly and separately from all other information, and it is recommended that each promotional message contains information for the voter/respondent that they can oppose further receipt of such messages at any time (for example, the sent message must include a link to unsubscribe from such messages or information on how else this can be done). If the respondent, i.e., the voter, opposes receiving messages, the political party/candidate must no longer send them.

However, if a political party addresses a voter who has not given consent for the processing of personal data for these purposes or if the voter is neither a member nor a supporter of that party and has not provided their personal data to that political party, the legal basis under Article 6 of the General Data Protection Regulation for the processing of personal data by the political party is not evident. If citizens receive a message from a political party/independent list and are not a member or supporter nor have shared their email or mobile number with it, they have the right to request access to their personal data from the political party/independent list (as the data controller), including information about the source of their personal data. The data controller must respond to the request without unnecessary delay, and no later than within one month.

Furthermore, political parties, independent lists, and candidates are obliged to inform citizens about the processing of their personal data in a transparent, clear, and concise manner, in accordance with Articles 13 and 14 of the General Data Protection Regulation. The information must be easily accessible, for example, on the party's websites, leaflets, and similar materials, and voters must have the opportunity at all times to access all relevant information about the processing of their personal data (what is the legal basis for processing, what personal data is collected, how long it is retained, who the potential recipients of that data are, etc.), and voters are also encouraged to inform themselves about all their rights under the General Data Protection Regulation. More about rights can be found at <https://azop.hr/prava-ispitanika/>.

The Agency recommends that all political parties, independent lists, candidates, and other participants in electoral promotion address citizens/voters in ways that do not necessarily involve the processing of their personal data when presenting their programs (for example, through public media, public forums, distributing non-personalized leaflets, brochures, and other materials in which they present and explain their program).

We appeal to political parties, independent lists, candidates, and other election participants to process (collect, store, deliver, provide access to, etc.) the personal data of party members, supporters, and

voters in accordance with the legislative framework for the protection of personal data and emphasize that in the event of a violation of the provisions of the General Data Protection Regulation, the Agency is authorized to impose corrective measures (e.g., issue an official warning, caution, restrict or prohibit processing, etc.), the most severe of which is an administrative monetary fine.

Finally, in accordance with Article 34 of the Act on the Implementation of the General Data Protection Regulation (NN 42/18), anyone who believes that their rights guaranteed by the General Data Protection Regulation and the Act on the Implementation of the General Data Protection Regulation have been violated may submit a request to the Agency for the determination of a rights violation at <https://azop.hr/zahtjev-za-utvrdivanje-povrede-prava/> (for example, if a voter has objected to a political party regarding the processing of their personal data for the purpose of sending promotional messages, and the political party has continued to send them, the voter can contact the Agency due to the violation of their rights).

More information on the processing of personal data in the context of parliamentary elections is available at the link <https://azop.hr/obrada-osobnih-podataka-u-sklopu-parlamentarnih-izbora/>.